

Southwood Financial LLC has submitted documents and declarations to support its request to set aside its settlement and enter judgment, pursuant to the Court's retained jurisdiction under CCP § 664.6. The Court received no timely opposition to this request. Upon review of the filing, the Court approves this request and enters judgment. The Court will sign the lodged Proposed Order.

6. 9:00 AM CASE NUMBER: C25-01289
CASE NAME: DEONN MORGAN VS. EAST BAY MUNICIPAL UTILITY DISTRICT (EBMUD)
***HEARING ON MOTION IN RE: DISMISS ACTION FOR FAILURE TO TRANSFER ACTION TO ALAMEDA COUNTY SUPERIOR COURT**
FILED BY: EAST BAY MUNICIPAL UTILITY DISTRICT (EBMUD)
TENTATIVE RULING:

The Court continues the hearing on this motion to July 16, 2026, at 9:00 a.m.

7. 9:00 AM CASE NUMBER: C25-02263
CASE NAME: THOMAS GODDARD VS. 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: 1910 N. MAIN STREET APARTMENTS CAPITAL LLC, A DELAWARE LIMITED LIABILITY COMPANY
TENTATIVE RULING:

Dismissal filed July 1. This matter is taken off calendar.

8. 9:00 AM CASE NUMBER: C25-02266
CASE NAME: ASCEND REHAB SERVICES INC. VS. SINDHU JEFFERSON
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO PLTFS DISCOVERY, SET 1**
FILED BY: ASCEND REHAB SERVICES INC.
TENTATIVE RULING:

Plaintiff Ascend Rehab Services, Inc. has filed a Motion to Compel Further Responses Discovery against Defendant Sindhu Jefferson relating to several Requests for Production of Documents and to one Special Interrogatory. Defendant Jefferson opposes the Motion. The Court has struggled somewhat with this Motion, given that it appears that Defendant Jefferson has provided responses beyond what was attached to Plaintiff's initial Motion papers, but neither party provided these supplemental responses to the Court. The Court will do its best to resolve this dispute on incomplete information.

Procedural Issues

Ascend's initial filing contained declarations that were not sworn to properly. That issue has been

remedied and the Court considers the declaration that now contains the proper information. Defendant Jefferson also notes that Ascend filed a single motion relating to two forms of discovery. There is no prohibition on combining motions to compel. Here, given that there is no breach of the page limitations and the combination appears to be promoting efficiency, the Court sees no procedural problems with this motion.

Substantive Discovery Issues

It appears that Defendant Jefferson failed to include bates numbers or any specific information in responding to the requests for production of documents. It must do so, identifying which produced documents it believes are responsive to each request.

Request for Production of Documents No. 1 - “Produce any and all non-privileged COMMUNICATIONS between YOU and any PRINCIPAL(S) of VerbaCare, Inc. for the period of January 1, 2025 to present.”

This request is extremely overbroad as to its scope. Plaintiff Ascend is not permitted to open up an entire company’s communications simply because of this litigation. The Court will compel responses relating to communications between Defendant Jefferson and VerbaCare principals relating to Plaintiff Ascend for the requested time period. Defendant Jefferson must include text messages in her production.

Request for Production of Documents No. 2 - “Produce any and all non-privileged COMMUNICATIONS between YOU and any EMPLOYEE(S) of VerbaCare, Inc., for the period of January 1, 2025 to the present.”

This request raises the same concerns as the previous, but even more so because it involves employees too. The Court will compel responses relating to communications between Defendant Jefferson and VerbaCare relating to Ascend’s documents, policies, and procedures. Defendant should redact identifying information for the employees. Defendant Jefferson must include text messages in her production.

Request for Production of Documents No. 3 - “Produce any and all non-privileged COMMUNICATIONS between YOU and any current or former EMPLOYEES of ASCEND, for the period of January 1, 2025 to the present.”

Based on the parties’ incomplete documentation and confusing briefing, it is unclear whether anything has been withheld, and if nothing was withheld, why was this request at issue in the pending Motion? If this Request remains in dispute, it is subject to the same limitations as above, in that it must relate to Ascend’s documents, policies, and procedures that are alleged to have been taken without authorization. It must include text messages.

Request for Production of Documents No. 4 - “Produce any and all non-privileged COMMUNICATIONS between YOU and Andrea Herrera for the period of January 1, 2025 to the present.”

Again, based on the parties’ incomplete documentation and confusing briefing, it is unclear whether

anything has been withheld, and if nothing was withheld, why was this request at issue in the pending Motion? If this Request remains in dispute, it is subject to the same limitations as above, in that it must relate to Ascend's documents, policies, and procedures that are alleged to have been taken without authorization. It must include text messages.

Request for Production of Documents No. 6 - "Produce any and all non-privileged COMMUNICATIONS between YOU and any current or former EMPLOYEE(S) of any school district in which Ascend provides services"

This request is extremely overbroad. As the Court understands the relevant dispute, this Request would only be relevant to Defendant Jefferson's efforts to undercut Ascend while she was still an employee of Ascend. With that understanding, the Court compels documents relating to that allegation only.

Request for Production of Documents No. 7 - "Produce any and all non-privileged DOCUMENTS establishing YOUR employment with VerbaCare, Inc."

This is a poorly written and overbroad request. The Court fails to understand whether Ascend lacks any relevant documents at this time.

Request for Production of Documents No. 8 - "Produce any and all non-privileged DOCUMENTS in YOUR possession which REFER OR RELATE TO ASCEND"

Again, based on the parties' incomplete documentation and confusing briefing, it is unclear whether anything has been withheld, and if nothing was withheld, why was this request at issue in the pending Motion? If this Request remains in dispute, it is subject to the same limitations as above, in that it must relate to Ascend's documents, policies, and procedures that are alleged to have been taken without authorization. It must include text messages.

Request for Production of Documents No. 9 - "Produce any and all DOCUMENTS downloaded by YOU from ASCEND during the period of January 1, 2025, to the present."

At this stage, it appears that Ascend is seeking only confirmation that Jefferson has produced all responsive documents. From what the Court could see, this clear statement was lacking from Jefferson's responses and should be delivered.

Request for Production of Documents No. 10 - "Produce any and all non-privileged ELECTRONICALLY STORED INFORMATION in YOUR possession, in its NATIVE FORM, which REFERS OR RELATES TO ASCEND for the period of January 1, 2025 to the present."

At this stage, it appears that Ascend is seeking only confirmation that Jefferson has produced all responsive documents. From what the Court could see, this clear statement was lacking from Jefferson's responses and should be delivered.

Request for Production of Documents Nos. 11-14

Ascend wants additional statements regarding the completeness of Jefferson's production. The Court declines to compel anything further here.

Special Interrogatory No. 1 - "IDENTIFY all ELECTRONIC DEVICES to which YOU downloaded DOCUMENTS that RELATE OR REFER TO ASCEND from January 1, 2024 to the present."

Defendant failed to identify her cell phone and work computer, claiming it was not clear that those were "electronic devices" onto which she could download. The Court disagrees. The answer should be amended to consider all electronic devices, including cellular phones, tablets, and any computers she used.

Sanctions

Ascend's requests were extremely overbroad. Jefferson's responses pleaded ignorance or confusion where none should lie. The Court declines to sanction either party.

9. 9:00 AM CASE NUMBER: C25-02528

CASE NAME: HELEN YU VS. PANLI HUANG

***HEARING ON MOTION IN RE: STRIKE CERTAIN AFFIRMATIVE DEFENSES OF DEFENDANT'S ANSWER
FILED BY: YU, HELEN H.**

TENTATIVE RULING:

The filing of an amended answer mooted the Motion to Strike. The Court will permit this filing. The hearing was vacated and is not currently on calendar. Plaintiff does not require but has permission to file a renewed Motion to Strike, provided Plaintiff makes sufficient attempts to meet and confer prior to submission of such motion.

10. 9:00 AM CASE NUMBER: C25-02528

CASE NAME: HELEN YU VS. PANLI HUANG

**HEARING ON DEMURRER TO: AFFIRMATIVE DEFENSES OF DEFENDANT'S ANSWER
FILED BY: YU, HELEN H.**

TENTATIVE RULING:

The filing of an amended answer mooted the Demurrer The Court will permit this filing. The hearing was vacated and is not currently on calendar. Plaintiff does not require but has permission to file a renewed Demurrer, provided Plaintiff makes sufficient attempts to meet and confer prior to submission of such motion.

11. 9:00 AM CASE NUMBER: N25-1974

CASE NAME: CEDRIC MOORE VS. DAVID LIVINGSTON

HEARING IN RE:

FILED BY:

TENTATIVE RULING: